

Subject: WHERE IS THE EVIDENCE? A Formal Request for Determination of Paragraph 64 of DH v RH (No 3) [2024] EWFC 79

Date: Friday, May 29, 2026 at 9:59:05 AM British Summer Time

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Attachments: Attachment_Index_28May2026_v3.pdf, Ex52_2026-05-28_PUBLIC_RECORD_Where_Is_The_Evidence_Paragraph_64_DH_v_RH_No3.pdf, Ex02_A1_Catalogue_of_InTrial_References.pdf, Ex47_Attendance_Notes — Zahmoul Final Hearing.pdf, Ex53_2024-04-18_DH_v_RH_No3_Final_Hearing - 2024_EWFC_79.pdf, Ex10_StatementA_Suppression_of_Disability_22May2026.pdf, Ex15_Complete_Forensic_Judgment_Analysis_3Apr2026.pdf, Ex16_Statement_of_Institutional_Failure_17Apr2026.pdf, Ex17_PRELIMINARY_Suppression_of_Disability_16Mar2026.pdf, Ex19_Forensic_Judgment_Analysis_v2_29Mar2026.pdf, Ex20_Order_Analysis_02_CostsJudgment_15Mar2026.pdf, Ex35_Order_Analysis_No1_Judgment_EWFC79_15Mar2026.pdf, Ex44_Appellate_Compounding_Mechanism_25May2026.pdf, Ex46_Suppression_Disabilities_Horizontal_22May2026.pdf, Ex57_Master_Archive_Index_28May2026_v2.pdf

PUBLIC RECORD

TO THE RT HON SIR STEPHEN COBB, PRESIDENT OF THE FAMILY DIVISION

WHERE IS THE EVIDENCE?

A Formal Request for Determination of Paragraph 64 of DH v RH (No 3) [2024] EWFC 79 — Addressed to the Rt Hon Sir Stephen Cobb, President of the Family Division — Copied to Commissioner Sir Mark Rowley QPM, Metropolitan Police Service

Case references

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-2026-000019

Dear Sir Stephen,

I write in your capacity as President of the Family Division. This letter is copied to Commissioner Sir Mark Rowley QPM because the matters to which it relates are also the subject of an existing criminal referral to the Metropolitan Police Service.

I am an autistic litigant in person with a co-occurring diagnosis of Post-Traumatic Stress Disorder. During the ten-day final hearing in BV20D01752 (19–28 February 2024), the court repeatedly recognised my autism and PTSD and operated throughout the hearing under FPR Part 3A participation measures granted in consequence of those disabilities. The contemporaneous attendance notes of the hearing (Ex47) record twenty-five references to autism and PTSD, including thirteen made by the trial judge himself.

The judgment that followed, *DH v RH (No 3)* [2024] EWFC 79, contains no reference to autism, PTSD, disability, vulnerability, participation measures, or FPR Part 3A. The attendance notes and the judgment therefore describe the same proceedings in materially different terms.

Paragraph 64 of that judgment nevertheless characterises my presentation in the witness box as having "*bordered on the concerning*" and states that I had become "*obsessed*" with demonstrating the existence of hidden assets. This finding is unsubstantiated as confirmed in the oral evidence (Ex47).

The issue raised by this letter is not whether the financial remedy outcome was correct or incorrect. Nor is it a request to revisit the merits of the proceedings. It is a narrower question concerning the relationship between the contemporaneous evidential record and the findings recorded in the judgment.

I therefore respectfully ask the President of the Family Division to determine the following single question of fact:

THE QUESTION

Is there evidence within Ex47, the contemporaneous record of the oral evidence given during the ten-day final hearing, that corroborates the findings recorded at paragraph 64 of *DH v RH (No 3)* [2024] EWFC 79?

The question admits of one of two answers.

- If the answer is **yes**, I respectfully request identification of the specific passage or passages relied upon, by page and line reference.
- If the answer is **no**, I respectfully request confirmation that no such corroborating passage has been identified.

The significance of the question is straightforward. The findings recorded at paragraph 64 have subsequently formed part of a chain of judicial characterisations that continue to carry substantial procedural, financial, and reputational consequences. If those findings are supported by the contemporaneous evidential record, the supporting evidence should be identifiable. If they are not, that fact should be capable of clear determination.

In accordance with the communication adjustments recommended by the Central London Adult Autism Service, I respectfully request a clear, direct, and unambiguous response addressing the specific question posed.

I respectfully request a substantive reply within seven days of the date of this letter, namely by **4 June 2026**.

Yours sincerely,

Nadia Zahmoul

Litigant in Person

28 May 2026

Veritas Numquam Perit

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proceedings on safety grounds

BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217 | FA-
2026-000019

Nadia Zahmoul

Claimant — Zahmoul v Secretary of State for Justice & HMCTS
High Court (Administrative Court) | Case Ref: **AC-2025-LON-004293**

Transparency Notice:

A public archive of officially filed lawfully publishable documents relating to this Judicial Review
is maintained for reference and verification purposes.

Repository: <https://github.com/nadiazahmoul/Zahmoul-v-SSJ-HMCTS-Public-Archive>

No confidential or private third-party material is published.
